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MODULE 3:- RES GESTAE

Meaning and nature

This is a common law principle of deep antiquity. It is an exception to the hearsay rule which precludes a person from testifying about what somebody else told him. While the singular is RES GESTA, the plural is RES GESTAE. It simply means things done or events which occurred. Where a transaction is in issue, all those facts which comprise the transaction that accompany and explain it are known as res gestae. In other words, Res Gestae comprises all relevant facts or events which are either in issue or which though not themselves in issue yet accompany some facts which are in issue so as to constitute circumstantial evidence which goes to explain or establish that fact. In ***Holmes v. Newman*** (1931) 2 Ch. 112, Lord Tomlin describes res gestae as '*a phase adopted to provide a respectable cloak for a variety of causes to which no formula of precision can be applied*". The facts which are admissible as forming part of the res gestae are usually declarations and acts which constitute, accompany or explain the fact in issue.

According to the learned legal writer Fidelis Nwadialo, res gestae is a fact which is so connected with a fact in issue as to form part of the transaction and did occur at the same time and place. In ***Sunday Akpan v. The State*** (1967) NMLR 185, the appellant was convicted of murder. The only eye witness called for the prosecution was the 12 year old son of the deceased who testified that while in bed on the night of the incident, he heard his mother shouting "Sunday has killed me", and when he eventually ran out, he saw the appellant cutting his mother with a matchet. It was held that the statement of the deceased that night as recounted by the boy was admissible s forming part of the res gestae.

Conditions for its admissibility

For a piece of evidence to be admitted as forming part of the res gestae, it must satisfy the following laid-down conditions:-

1. The statement must be substantially contemporaneous with the fact in issue:- Contemporaneity here refers to the proximity or closeness in time of the statement made and the event or transaction which led to the charge. The reason for this condition is to exclude the possibility of

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having the statement concocted to the advantage of the witness. In ***R. v. Beddingfield*** (19879) 14 Cos 341, a lady staggered from a room where she had been with the ~~deceased~~ accused with her throat slashed and exclaimed, 'aunty see what Harry has done to me".. It was held that this was no more than a narration of a transaction which was completed and was not admissible as res gestae. Also, in ***R v. Christy*** (1914) a.c. 545 the accused was charged with assaulting a boy P and his defence was alibi. A few minutes after the alleged act, P had returned to the spot with his mother and a police constable and in their presence he touched the accused and said: "this is the man". On being asked what the accused had done, P described the assault. It was held that although the statement "this is the man" was admissible as evidence of identification, the explanation of how the assault took place will not be admitted as part of the res gestae as it was not contemporaneous with the event in issue. The West African Court of Appeal followed the above decision in the case ***of R v. Bangweyeku*** (1943) 9 WACA 195. Here, the accused was charged with murder and the only important evidence against him was the statement made by the deceased after the act that "Bang has shot me". The statement was made in the absence of the accused. It was held to be admissible as forming part of the res gestae. Although some legal writers have criticised the position of the courts in the line of cases especially in ***R v. Beddingfield*** (supra),the Privy Council restated the rule of contemporaneity in ***Holmes v. Newman*** (1931) 2 Ch. 112 at 120 thus: *"It is essential that the fact should be so associated with the action or event which it accompanies in time, place and circumstances that they are said to be part of the thing being done*".

Note that in ***Sule Salawu v. State*** (1971) 1 NMLR 249, several people heard the voice of the deceased crying "Sule is killing me". The witness rushed into the room and found the deceased in a pool of blood. It was held that the cry of the deceased was admissible as res gestae. Note also that in ***Sunday Akpan v. R*** (supra) where a 12 year old boy heard the cry of his mother and rushed into her room only to find the accused cutting her with a matchet, this was also held admissible as part of the res gestae. See also Okokor v. The State(1969) NMLR 189.

2. The statement must explain the fact in issue and not prior or subsequent disconnected facts. A classic illustration of this condition could be seen in the case of ***Agassiz v. London Tramway Co. Ltd*** (1873) 21 W.R. 199 where the plaintiff sued the defendant company for

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negligence as a result of collision by the defendant's train which injured the plaintiff. After the collision, a passenger said of the driver: "this fellow's conduct ought to be reported" and the conductor relied that: "he has already been reported for he has been off the line five or six times today – he is a new driver". It was held that this statement of the conductor was inadmissible as it referred to the previous conduct of the driver and did not explain or shed light on the present collision which led to the case at hand.

3. That the statement in question must be made by a role actor in the incident or transaction. See ***Howe v. Malkin*** 27 WR. 340. A statement of a stranger to a transaction cannot be said to constitute part of the res gestae. Note that it is on the basis of this condition that statements of the deceased or the assailants have always been admitted as res gestae.

The applicability of the principle of Res Gestae in Nigeria

In Nigeria, the common law principle of Res gestae was codified in Section 4 of the Evidence Act 2011 which provides thus: "Facts which, though not in issue, are so connected with a fact in issue as to form part of the same transaction, are relevant, whether they occurred at the same time and place or at different times and places". This provision clearly shows that Section 4 of our Evidence Act is clearly wider in scope than the English rule of Res gestae as it completely did away with the rule of contemporaneity. In other words, if the case of ***R v. Beddingfield*** (supra) was tried under Section 4 of the Evidence Act, 2011, the statement: 'aunty see what Harry has done to me' would have been admissible as res gestae.

What flows from the foregoing is that Section 4 of the Evidence Act 2011 has clearly removed the requirement of contemporaneity from our rule of Res gestae in Nigeria.

TUTORIAL QUESTIONS

1. Explain the meaning and conditions for the rule of Res Gestae.
2. Section 4 of the Evidence Act, 2011 is wider in scope than the English rule of Res Gestae. Discuss.

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